

LW5647: LAW OF WILLS (SUCCESSION)

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Law of Wills (Succession)

Subject Code

LW - Law

Course Number

5647

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

LW5601 Hong Kong Legal System,
LW5622 Legal Methods, Research and Writing,
LW5602A Law of Contract I,
LW5607A Land Law I, and
LW5630A Equity and Trusts I

Precursors

Nil

Equivalent Courses

LW4647 Law of Wills (Succession)

Exclusive Courses

Nil

Part II Course Details

Abstract

This course develops an enquiring mind which seeks to discover the law relating to succession and provides for an awareness of the social context in which succession law operates. It also provides an understanding of the legal rules governing the distribution of property upon death and furnishes students with a working knowledge of the administration of estates. This course is one of a group of courses which enable students to study a series of courses which focus on issues of family law, gender, property law, taxation and trust.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Describe and explain the legal rules governing the distribution of property upon death	40	x		
2	Critically analyse and evaluate legal principles and doctrines in the law of succession in the light of the policy objectives and the social context of the law	30	x	x	
3	Apply the principles of succession law to solve legal problems by: 1. reading and interpreting cases 2. interpreting statutes 3. dealing with facts 4. conducting legal research 5. developing persuasive arguments 6. using legal authorities 7. writing and communicating orally	30	x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs	Brief Description	CILO No.	Hours/week (if applicable)
1	Lectures	- Students will be introduced to the statutory and common law requirements for a valid will through interactions with the lecturer and amongst themselves through e.g. discussions, debates and student presentations in the course of the lectures. - Students will read cases to prepare for lectures, interpret statutes and develop persuasive arguments in class discussion. - Students will explore relevant issues of law and address the theoretical underpinnings of various topics.	1, 2, 3
2	Tutorials	- Students will be given the opportunity to clarify or raise further questions in regard to the basic principles of will validity taught in the lectures. - Students will apply legal principles to the solution of problems. This may be done in the form of discussions, debate or presentations - Students will critically analyse and evaluate legal principles and doctrines.	1, 2, 3

Assessment Tasks / Activities (ATs)

	ATs	CILO No.	Weighting (%)	Remarks ("- for nil entry)	Allow Use of GenAI?
1	Participation in tutorial sessions	1, 2, 3	10	- Students' ability to understand rules and principles will be tested in forms such as presentations, debates and client counselling. - Students' ability to apply rules and principles will be tested in forms such as presentations, debates and client counselling. - Students' ability to critically analyse and evaluate rules and principles will be tested in forms such as presentations, debates and client counselling.	No

2	Coursework /In class test	1, 2, 3	40	- Students' ability to describe and explain the requirements of will making contract will be tested. - Students' ability to conduct legal research, collect data and decipher primary and secondary materials in order to solve problems will be tested. - In the process of attempting the coursework/ in class test, students' ability to conduct legal research, collect data and decipher primary and secondary materials in order to critically analyse evaluate legal principles and doctrines will be tested. The in-class test aims to test students' understanding and their application of the legal principles.	No
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Continuous Assessment (%)

50

Examination (%)

50

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

40

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Grading of Student Achievement: Standard (A+, A, A-...F). Grading is based on student performance in assessment tasks / activities.

Applicable to students admitted in Semester A 2022/23 and 2023/24

To pass this course student must obtain an aggregate mark of 50% and a minimum of 50% in each of the coursework/ in class test and the examination elements of the assessment. Coursework/ In class test for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter

To pass this course student must obtain an aggregate mark of 40% and a minimum of 40% in each of the coursework/ in class test and the examination elements of the assessment. Coursework/ In class test for this purpose means those ways in which students are assessed otherwise than by the end of session examination.

The portion of the overall mark allocated to performance/participation in inter-active in class activities will be assessed on the quality of the participation. Assessment criteria for those activities, their nature and their timing will be set out in the study guide/course manual and will be further expanded upon by the course leader.

The duration of the examination will be at the discretion of the course leader. The course leader will announce the duration of the examination in the first week of the course. Similarly the course leader will announce whether the examination will be closed book or open book.

To enable the full benefit to be obtained from this course, students should attend all of the classes and activities.

Assessment will be formative to enable students to demonstrate their capacity to understand, analyse and apply rules and principles and summative to assess ability to synthesise primary and secondary material to solve novel problems.

Assessment Rubrics (AR)

Assessment Task

Participation in tutorial sessions (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Excellent

High

Good

Significant

Fair

Moderate

Marginal

Basic

Failure

Not even realising marginal levels

Assessment Task

Timed test/ coursework assignment (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Criterion

Ability to describe the principles, apply and critique where appropriate, relevance to authorities necessary, where applicable

Excellent

High

Good

Significant

Fair

Moderate

Marginal

Basic

Failure

Not even realising marginal levels

Assessment Task

Examination (Applicable to students admitted before Semester A 2022/23 and Semester A 2024/25 and thereafter)

Criterion

Ability to describe the principles, apply and critique where appropriate, relevance to authorities necessary, where applicable

Excellent

High

Good

Significant

Fair

Moderate

Marginal

Basic

Failure

Not even realising marginal levels

Part III Other Information

Keyword Syllabus

Wills, their nature, characteristics and contents, Types of wills, Making a will: formalities, statutory requirements, capacity and intention, Alteration of wills, Revocation: by destruction, marriage or later will, Construction of wills: legacies, devises and failures of gifts, Rules of intestacy, Family provision, Estate Duty, Administration of estates and Chinese customary law.

Detailed Syllabus

(You may incorporate the information from the course syllabus)

Nature of wills, their characteristics and content. Types of wills – mutual wills and privileged wills.

Formalities for making wills, need for strict compliance with statutory requirements.

Testamentary capacity and testamentary intention, the issue of knowledge and approval, the effect of fraud, undue influence, insanity and lucid intervals on wills.

Alteration and republication of wills

Revocation of wills – by marriage or a later will and the consequences of revocation.

Construction of wills – legacies and devises, failure of gifts.

The application of rules on total and partial intestacy.

Family provision – statutory entitlements and possible claimants.

Administration of estate - appointment of executors and administrators, collection of assets and payment of debts.

Reading List

Compulsory Readings

Title	
1	Parry and Clark, The Law of Succession 12th edition (Sweet & Maxwell)
2	Andrew Borkowski, Textbook on Succession 2nd edition (Oxford University Press)